

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 25-07

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PKDC, LLC  
Complainant,

v.

COSCO Shipping Lines Co., Ltd.  
Respondent

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**COMPLAINANT’S UNOPPOSED MOTION TO  
AMEND THE SCHEDULING ORDER**

Pursuant to 46 C.F.R. Sections 502.69, 502.79, and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) submits this Unopposed Motion to Amend the Scheduling Order (“Motion”) to allow sufficient time to complete discovery and develop a full record in this matter. As discussed below, good cause exists for the instant Motion.

**I. Background**

On January 12, 2026, the Presiding Officer entered an amended scheduling order (“Scheduling Order”) with the following deadlines relevant to this Motion:

|                   |                                                                                               |
|-------------------|-----------------------------------------------------------------------------------------------|
| February 16, 2026 | Substantial completion of production of documents and electronically stored information (ESI) |
| February 16, 2026 | Fact witness depositions may commence                                                         |
| February 18, 2026 | Disclosure of Complainant’s expert reports                                                    |
| February 27, 2026 | Last day parties may serve supplemental discovery requests                                    |
| March 6, 2026     | Complete depositions of fact witnesses                                                        |
| March 19, 2026    | Disclosure of Respondent’s rebuttal expert reports                                            |

|                |                                                                                                                |
|----------------|----------------------------------------------------------------------------------------------------------------|
| March 27, 2026 | Expert witness depositions may commence                                                                        |
| April 7, 2026  | Close of all discovery                                                                                         |
| May 8, 2026    | Complainant's brief, proposed findings of fact, and appendix                                                   |
| June 8, 2026   | Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix |
| June 22, 2026  | Complainant's reply brief and responses to proposed findings of fact                                           |

The parties have both exchanged their initial disclosures and both exchanged first sets of discovery (interrogatories and document requests) and the Respondent has provided its initial responses, and Complainant has begun exchanging documents but continues to work on its productions. Undersigned counsel had anticipated completing production by the dates in the amended scheduling order. However, shortly after the entry of the amended order in this matter, undersigned counsel became ill, ultimately being diagnosed with a sudden, serious illness that has necessitated multiple doctor visits, an emergency room visit, and prescription medication with side effects which, in and of themselves, made working extremely difficult. Despite best efforts, the illness largely prevented counsel from working on this matter throughout the end of January. Counsel is now back and able to work on the matter.

### **Argument**

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Complainant submits good cause exists in this instance.

#### **a. Extension of Discovery and Briefing Deadlines**

As discussed above, despite best efforts, undersigned counsel's unexpected illness prevented counsel from devoting sufficient time to this matter to finalize discovery responses including reviewing documents for privileges or other required redactions prior to production. A medical issue

typically constitutes good cause for an extension of time. *See, e.g., Verterra Ltd. v. D.B. Grp. Am. Ltd.*, 2019 WL 7566991 (F.M.C. Dec. 26, 2019) (noting that “good cause [was] established” in part due to “a medical procedure”); *YSN Imports Inc. v. Oberlander*, 2021 WL 1627720 (F.M.C. Apr. 20, 2021) (continuing “medical emergency in counsel’s family” established good cause for two extensions totaling approximately a month).

## **II. Proposed Amended Schedule**

Given undersigned counsels medical issue, and that the parties are still working to complete the necessary discovery in this matter, Complainant respectfully requests a 30-day extension of the current Amended Scheduling Order as set forth below:

|                |                                                                                               |
|----------------|-----------------------------------------------------------------------------------------------|
| March 18, 2026 | Substantial completion of production of documents and electronically stored information (ESI) |
| March 18, 2026 | Fact witness depositions may commence                                                         |
| March 20, 2026 | Disclosure of Complainant’s expert reports                                                    |
| March 30, 2026 | Last day parties may serve supplemental discovery requests                                    |
| April 6, 2026  | Complete depositions of fact witnesses                                                        |
| April 20, 2026 | Disclosure of Respondent’s rebuttal expert reports                                            |

|                |                                                                                                                |
|----------------|----------------------------------------------------------------------------------------------------------------|
| April 27, 2026 | Expert witness depositions begin April                                                                         |
| May 27, 2026   | Close of all discovery                                                                                         |
| June 8, 2026   | Complainant's brief, proposed findings of fact, and appendix                                                   |
| July 8, 2026   | Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix |
| July 22, 2026  | Complainant's reply brief and responses to proposed findings of fact                                           |

On February 12, 2026, counsel for Respondent, indicated that Respondent does not oppose the relief requested in this motion.

As good cause exists, this extension will not cause undue delay but allow for the creation of a complete record in this complex matter, and there is no opposition, Complainant respectfully requests that the Motion be granted.

**WHEREFORE**, the Complainant prays that its Unopposed Motion to Amend the Scheduling Order be granted.

**SANDLER, TRAVIS & ROSENBERG, P.A.**

*Respectfully Submitted*  
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By:                     /s/                      
*Jason M. Kenner*  
*Counsel for Complaint PKDC*

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that on this 13<sup>th</sup> day of February, the foregoing motion for an extension of time was served via electronic mail on:

Federal Maritime Commission  
Office of the Secretary  
[secretary@fmc.gov](mailto:secretary@fmc.gov)

Federal Maritime Commission  
Presiding Administrative Law Judge  
[judges@fmc.gov](mailto:judges@fmc.gov)

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/s/ Jason M. Kenner